

ALITO, J., dissenting

postdates the enactment of Title VII. Nothing resembling what is now called gender dysphoria appeared in either DSM-I (1952) or DSM-II (1968). It was not until 1980 that the APA, in DSM-III, recognized two main psychiatric diagnoses related to this condition, “Gender Identity Disorder of Childhood” and “Transsexualism” in adolescents and adults.³² DSM-III, at 261–266.

The first widely publicized sex reassignment surgeries in the United States were not performed until 1966,³³ and the great majority of physicians surveyed in 1969 thought that an individual who sought sex reassignment surgery was either “‘severely neurotic’” or “‘psychotic.’”³⁴

It defies belief to suggest that the public meaning of discrimination because of sex in 1964 encompassed discrimination on the basis of a concept that was essentially unknown to the public at that time.

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The Court’s main excuse for entirely ignoring the social context in which Title VII was enacted is that the meaning of Title VII’s prohibition of discrimination because of sex is clear, and therefore it simply does not matter whether people in 1964 were “smart enough to realize” what its language means. *Hively*, 853 F. 3d, at 357 (Posner, J., concurring). According to the Court, an argument that looks to the societal norms of those times represents an impermissible attempt to displace the statutory language. *Ante*, at 675–676.

The Court’s argument rests on a false premise. As already explained at length, the text of Title VII does not pro-

³² See Drescher, *supra*, at 112.

³³ Buckley, A Changing of Sex by Surgery Begun at Johns Hopkins, N. Y. Times, Nov. 21, 1966, p. 1, col. 8; see also J. Meyerowitz, How Sex Changed 218–220 (2002).

³⁴ Drescher, *supra*, at 112 (quoting Green, Attitudes Toward Transsexualism and Sex-Reassignment Procedures, in Transsexualism and Sex Reassignment 241–242 (R. Green & J. Money eds. 1969)).